
COLORADO STATE BOARD OF EXAMINERS OF NURSING HOME ADMINISTRATORS BOARD POLICIES

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SECTION 1 - ADMINISTRATIVE POLICIES

10-01 - EMERGENCY BOARD MEETINGS (ADOPTED JULY 23, 2008)

When an issue arises that may necessitate an emergency Board meeting, the Program Director shall confer with the Board Chair. The Chair will then determine if a meeting shall be held and may authorize an emergency Board meeting. Emergency Board meetings may be conducted by telephone conference call.

10-02 - REPORTS OF INVESTIGATIONS (ROI) AND USE OF CONSULTANTS (ADOPTED JULY 23, 2008)

1. The Board may request investigators to forward a case directly to a consultant in specific situations. The Board may provide specific questions to be presented to the consultant for a response.
2. Written reports from consultants and any other experts will not be summarized. The entire report will be attached to the Report of Investigation (ROI) and listed under attachments.
3. If a complaint involves any of the following allegations, it will be forwarded directly to the Office of Investigations, without a request for a response being sent by Board staff to the respondent in the case:
 - a. Allegations involving drugs or alcohol.
 - b. Allegations of sexual misconduct.
 - c. Allegations of unlicensed practice.
 - d. Allegations relating to fraud, theft or misappropriation.
 - e. Allegations relating to practice beyond the statutory or customary scope of practice.
 - f. Allegations relating to a termination from participation in Medicare and/or Medicaid programs.
 - g. Any complaint where it is apparent to the Program Director that an immediate investigation is needed.
4. If a complaint is referred directly to the Office of Investigations for any of the above allegations, then the investigator assigned to the case will be responsible for presenting a copy of the complaint to the respondent and requesting their response to the complaint. The investigator shall document in the file the date that the complaint was provided to the respondent. Any unannounced investigation shall be conducted during normal business hours. The investigator may be accompanied by a consultant who has expertise in the conduct being investigated.
5. If the ROI or any report, including that of an expert consultant, demonstrates that the public health, safety and/or welfare imperatively requires emergency action and/or that there is a deliberate and willful violation of statute or rule, the Board may initiate summary suspension proceedings pursuant to section 24-4-104(4)(a), C.R.S.

SECTION 2 - ENFORCEMENT

20-01 - CHILD SUPPORT ENFORCEMENT (ADOPTED JUNE 3, 1998; REVISED FEBRUARY 1, 2006; AMENDED JULY 23, 2008)

The Program Director is granted the authority to suspend and reinstate the licenses of practitioners who are in violation and subsequently in compliance with the Child Support Enforcement Act as notified by the Colorado Department of Human Services.

20-02 - CONTINUING EDUCATION REQUIREMENTS (ADOPTED NOVEMBER 20, 2002; REVISED FEBRUARY 1, 2006; AMENDED JULY 23, 2008; AMENDED SEPTEMBER 30, 2009)

1. It is the position of the Board that nursing home administrators should remain up to date with current trends and developments in the long-term care community. Although not required by law, continuing education is one means of maintaining currency in the profession.
2. The Board may require continuing education as part of a disciplinary action. In those instances, to ensure the full benefit of continuing education, the Board recommends that no more than 30% of any required education submitted for approval be in the form of audio/visual or internet courses with proof of completion. The Board will consider, at its sole discretion, any request to increase the total percentage of audio/visual/internet courses to up to 50% due to hardship, including, but not limited to, the unavailability of courses due to rural location or lack of offering.
3. A Board member may be appointed to review and approve requests for approval of continuing education that are submitted to the Board following the conclusion of a regularly scheduled meeting. Any action taken with respect to continuing education approval shall be submitted to the Board for ratification at the next scheduled meeting.

20-03 - INITIAL DECISION (ADOPTED MARCH 3, 1999; REVISED FEBRUARY 1, 2006; AMENDED JULY 23, 2008; AMENDED NOVEMBER 16, 2011)

It is the policy of the Board of Examiners of Nursing Home Administrators that any Initial Decision of an Administrative Law Judge (ALJ) from the Office of Administrative Courts (OAC) will be appropriately served with the approved Board Procedural Order Regarding Review of Initial Decision ("Order") upon parties involved in a case or cases before the Board.

The Board delegates authority to the Program Director or his/her designee to issue procedural orders for the Board and to rule upon motions, including but not limited to requests for extensions of time for good cause.

The Board further delegates authority to the Section Director and the prosecuting attorney to determine whether or not to file exceptions on behalf of the Board.

20-04 - BOARD PROCEDURAL ORDER REGARDING REVIEW OF INITIAL DECISIONS

(ADOPTED MARCH 27, 2024)

The Board delegates to the Division Director, Program Director, or their designee (“Director”) the authority to issue on the Board’s behalf the adopted “Board Procedural Order Regarding Review of Initial Decision” (“Procedural Order”). The Board also delegates to the Director the authority to review Initial Decisions for legal sufficiency prior to issuing the Procedural Order and Initial Decision to the parties. The Board has determined that an Initial Decision is legally sufficient if it meets all the requirements set forth in Table 1A below. If an Initial Decision fails to meet any requirement set forth in Table 1A, the Board delegates to Director the authority to remand the matter to the Office of Administrative Courts with guidance to reissue the Initial Decision and to include the missing information.

See the table below:

TABLE 1A

Questions for Review of Initial Decision:
Does the Initial Decision include findings of fact regarding the evidence presented during the disciplinary proceeding? (This may be an itemized list, or an adoption of the allegations included in the Notice of Charges.)
If the Initial Decision adopts or incorporates the allegations of the Notice of Charges, has the Notice of Charges been attached as an exhibit to the ID? (Board staff may attached the Notice of Charges as an exhibit to the Initial Decision prior to PO issuance without returning the Initial Decision to Office of Administrative Courts pursuant to this policy.)
Does the Initial Decision include specific conclusions of law regarding jurisdictional authority?
Does the Initial Decision include specific conclusions of law regarding the violations that Respondent has committed?
Does the Initial Decision include specific conclusions of law regarding the violations which subject the Respondent to discipline?
Does the Initial Decision include a recommended sanction?
Does the Initial Decision include conclusions of law supporting the recommended sanction?

20-05 - INITIAL DECISIONS EXCEPTIONS PROCESS AND DELEGATION OF AUTHORITY

(ADOPTED MARCH 29, 2023)

It is the policy of the Colorado Board of Examiners of Nursing Home Administrators (“Board”) that any Initial Decision of an Administrative Law Judge (“ALJ”) from the Office of Administrative Courts (“OAC”) will be appropriately served with the approved Board Procedural Order Regarding Review of Initial Decision (“Order”) upon the parties to the case before the Board. The Board delegates authority to the Program Director, or his/her/their designee, to issue such procedural orders for the Board.

The Board authorizes the Deputy Division Director, or designee, upon a showing of good cause to rule on motions for extensions of time for any deadline set out in the Board’s Procedural Order, to rule on any motion for continuance of a scheduled oral argument, and to issue procedural orders on behalf of the Board.

For the purpose of this policy, good cause may include, but is not limited to: unavailability of counsel or a party to file briefs or pleadings or to appear for a scheduled hearing due to a preexisting obligation that cannot reasonably be altered; death or incapacitation of a party or an attorney for a party; a court order staying proceedings or otherwise necessitating an extension or continuance; entry or substitution of an attorney for a party within 30 days prior to the oral argument, or a showing that more time is clearly necessary to complete the scheduled briefing or to prepare for the hearing. Good cause normally does not include failure of an attorney or a party to timely prepare for an oral argument.

The Board authorizes the Deputy Division Director, or designee, to sign and issue Final Agency Orders on behalf of the Board adopting Initial Decisions Upon Default provided no exceptions are filed on behalf of either party.

The Board authorizes the Deputy Division Director, or designee, to issue Final Agency Orders on behalf of the Board adopting Initial Decisions which dismiss filed cases, provided no exceptions are filed on behalf of either party, in the event of a death of the applicant or licensee.

20-06 - MEDIATION AUTHORITY (ADOPTED FEBRUARY 1, 2006; AMENDED JULY 23, 2008)

The Board delegates to its legal counsel the authority to select any member of the Board to participate in mediation. Unless more restrictive or specific guidance is given to counsel at a Board meeting, the Board also delegates to the participating member the settlement authority to resolve the pending complaint at mediation with the exception that any recommendation for dismissal of the complaint must be reviewed by a quorum of the Board at the next scheduled meeting.

20-07 - REQUEST FOR ENFORCEMENT DOCUMENTS FROM STATE BOARD OR LAW ENFORCEMENT ENTITY (ADOPTED MAY 15, 2002; AMENDED JULY 23, 2008)

Upon the receipt of a formal request for information submitted by another licensing board or a law enforcement entity, the Board staff may share licensing, investigatory, and disciplinary information with the other licensing boards or law enforcement agencies. Prior to release of information, Board staff shall consult, to the extent necessary, with the Office of the Attorney General to ensure that no information is released that must be kept confidential by law.

20-08 - SIGNING STIPULATIONS AND OTHER BOARD ACTIONS (ADOPTED FEBRUARY 4, 2004; AMENDED JULY 23, 2008; AMENDED SEPTEMBER 30, 2009)

The Board delegates the signing of Letters of Admonition, Confidential Letters of Concern, Subpoenas, Cease and Desist Orders, Stipulations, Final Agency Orders and other formal actions of the Board to the Program Director.

20-09 - SUBPOENA ENFORCEMENT (ADOPTED FEBRUARY 1, 2006; AMENDED JULY 23, 2008)

The Board authorizes its Assistant Attorney General to take whatever action is required to enforce a subpoena. The Program Director is authorized to direct enforcement of the subpoena on behalf of the Board in consultation with the Board Chair.

20-10 - SUMMARY SUSPENSION (ADOPTED MARCH 3, 1999; REVISED FEBRUARY 1, 2006; AMENDED JULY 23, 2008)

The Program Director, with the approval of the Board Chair, may order a summary suspension pursuant to section 24-4-104(4), C.R.S. as well as a mental or physical examination of a licensee pursuant to section 12-265-115 C.R.S. in an emergency situation. The Program Director may sign the appropriate order on behalf of the Board. It is understood that such action may be taken prior to full Board review of complaint information. The Board will be asked to ratify the action at its next scheduled meeting.

20-11 - SURVEY REPORTS (ORIGINAL IMPLEMENTATION JANUARY 1997; REVISED SEPTEMBER 1997; REVISED JUNE, 1998, REVISED NOVEMBER, 2000; REVISED MARCH, 2001; REVISED MAY, 2001, REVISED AUGUST, 2001; REVISED AUGUST, 2003; REVISED AUGUST 2006; AMENDED JULY 23, 2008; AMENDED SEPTEMBER 30, 2009)

Policy regarding Use of Enforcement Actions of the Colorado Department of Public Health and Environment.

1. The Colorado Department of Public Health and Environment (CDPHE) will send information to the Board regarding surveys under the following conditions:
 - a. A survey finding of immediate jeopardy;
 - b. A survey finding of substandard care to include deficiencies cited at the scope and severity of level H (a pattern of actual harm that is not immediate jeopardy) and above;
 - c. A revisit survey finding uncorrected or new deficiencies cited at the scope and severity of level G (isolated actual harm that is not immediate jeopardy);
 - d. Other survey, complaint or occurrence information that evidences a pattern of concern and upon which is cause for CDPHE to believe that licensing standards may have been violated by individuals licensed by the Board; and
 - e. Other surveys, complaints or occurrence information that causes CDPHE to believe that licensing standards may have been violated by individuals required to be licensed by the Board.
2. Upon receipt of the survey, Board staff will document the information into the database. Staff will identify all persons who had served as the nursing home administrator for the facility most likely accountable for the facility on the date of survey.

3. The material received from CDPHE and information relating to administrators may be transmitted to the Office of Investigations if necessary.
4. The Board will be notified at the next scheduled Board meeting about the survey results obtained from CDPHE.
5. Investigators are authorized to notify Board staff if an additional administrator(s) who had possible accountability is identified during the investigation so the appropriate complaint may be initiated. The Report of Investigation generated by the investigator assigned to the case will be reviewed by the Board. The Board may dismiss, refer back to Office of Investigations for more information, issue a Letter of Admonition, dismiss with a Confidential Letter of Concern, refer to the Office of Expedited Settlement in order to settle a disciplinary action, or refer to the Attorney General's office for formal disciplinary proceedings.

These policy guidelines do not prohibit the Board from reviewing and/or taking action on survey results of CDPHE other than those identified above should the Board have reasonable cause to believe that a nursing home administrator may have violated section 12-265-113, C.R.S.

20-12 - PRACTICE MONITOR APPLICATIONS (ADOPTED SEPTEMBER 10, 1997; AMENDED JULY 23, 2008)

1. Individuals applying for approval to act as Practice Monitors for licensees under Stipulation with the Board must have an active license without any conditions in the State of Colorado. If a Practice Monitor, at some point in time after approval, has his or her license to practice in CO revoked or suspended, or allows the license to expire, then he or she cannot continue to perform the duties of an approved Practice Monitor.
2. Applicants and current Practice Monitors are required to inform the Board of past and/or current professional discipline administered by any State Board or jurisdiction as it relates to their professional license in CO. It is within the Board's sole discretion to determine whether the affected individuals may be approved to act as a Practice Monitor or to continue performing in such a capacity.
3. A Practice Monitor is required to be fair and impartial. Therefore, the Practice Monitor shall not be related to the monitored nursing home administrator by blood or marriage and shall not have any personal financial interest in the monitored administrator's license or practice. The Board may, on a case by case basis, approve a request for exception based upon hardship provided that the Practice Monitor submit sufficient proof that he or she is, and can remain, fair and impartial during the monitoring period.
4. A Board member may be appointed to review and approve Practice Monitor applications submitted to the Board following the conclusion of the regularly scheduled meeting. Any action taken with respect to a Practice Monitor application shall be submitted to the Board for review and ratification at the next scheduled meeting.

20-13 - PROCESS FOR HANDLING COMPLAINTS INVOLVING CURRENT/PAST BOARD MEMBERS (ADOPTED SEPTEMBER 30, 2009)

If a signed complaint is received against a Board member and the basis of the complaint arises from words said or actions committed while the licensee was engaged in official duties as a Board member, then the complaint may be dismissed in compliance with section 12-20-403(5), C.R.S. The Board

member need not respond to or provide evidence concerning the complaint. The dismissal is automatic.

1. It is the policy of the Board of Examiners of Nursing Home Administrators that any signed complaint received by the Board against a current licensee who is a member of the Board or one who has served on the Board within the past five (5) years, or a licensee who has an ongoing formal relationship with the Board will be handled as follows:
 - a. If the complaint alleges a violation of the Nursing Home Administrators Act, Article 265 of Title 12 or Board Rules, the complaint will be sent to the Office of Investigations within the Division of Registrations for a formal investigation.
 - b. If the complaint alleges substandard practice, the Office of Investigations will have the case reviewed by an independent consultant selected by the Office of Investigations.
 - c. If the complaint alleges sexual boundary violations, substance abuse, or physical or mental impairment, the Board may require the licensee to undergo an evaluation by a Board approved peer assistance provider or a qualified healthcare provider selected by the Office of Investigations. At a minimum, the complaint shall be sent to the Office of Investigations to determine if there is any validity to the allegations.
2. Upon completion of the investigation and/or evaluation, the report will be referred to the Board for appropriate action.
 - a. If the complaint alleged sexual boundary violations, substance abuse, or physical or mental impairment, and the report from the Office of Investigations substantiates such allegations, the Board shall require the licensee to undergo an evaluation by a Board approved peer assistance provider or a qualified healthcare provider selected by the Office of Investigations, if the Board has not already done so.
3. If the complaint is against a current Board member, he or she shall recuse from all discussions regarding the complaint and physically leave the meeting room during these discussions.
4. All other customary procedures for the handling of a complaint by the Board will apply. These include but are not limited to initiation of the complaint process by the Board, notification to the licensee and complainant of Board decisions, and the confidentiality of the complaint and investigation as provided by the Board's organic statute.
5. Anonymous complaints filed against a current licensee who is a member of the Board or one who has served on the Board within the past five (5) years, or a licensee who has an ongoing formal relationship with the Board will be evaluated by the Board in accordance with the Board's policy regarding anonymous complaints.

20-14 - ANONYMOUS COMPLAINTS (ADOPTED SEPTEMBER 30, 2009)

It is the policy of the Board of Examiners of Nursing Home Administrators not to encourage anonymous complaints. The Board will not automatically investigate anonymous complaints. Rather, they will be subject to review on a case-by-case basis except as provided below:

Anonymous complaints received against an elected official of the state of Colorado or a political subdivision of Colorado or a member of a board or commission established by the state of Colorado arising from words said or actions committed while the licensee was engaged in official duties shall be dismissed in compliance with section 12-20-403(5), C.R.S.

It is the policy of the Board that signed complaints filed against an elected official of the state of Colorado or a political subdivision of Colorado or filed against a member of a board or commission

established by the state of Colorado where the basis of the signed complaint arises from words said or from actions committed while the licensee, certificant, or the registrant was engaged in official duties may be dismissed in compliance with section 12-20-403(5), C.R.S. The licensee, certificant, or the registrant need not respond to or provide evidence concerning the complaint. The dismissal is automatic.

SECTION 3 - LICENSING POLICIES

30-01 - ADMINISTRATIVE REVIEW OF APPLICATIONS FOR LICENSURE (ADOPTED DECEMBER 8, 1993; REVISED FEBRUARY 1, 2006; JUNE 13, 2007, MAY 24, 2023)

1. The Board delegates authority to the Program Director to review applications for licensure by Examination and Endorsement and license persons whose applications clearly meet requirements. If the Program Director has any concerns about an application, the application will be referred to the Board for its review and disposition. The names of all applicants licensed will be placed on the agenda for Board ratification.
2. The Board delegates authority to the Program Director to approve NHA reinstatement applications with a Confidential Letter of Concern (CLOC) when the license has been expired for six months or less.
3. If an applicant has previously been disciplined or received a CLOC for similar conduct, or other circumstances exist, Division staff will present the matter to the Board as an individual agenda item.
4. From the date of expiration, a license holder or registrant has a 60-day grace period within which to renew a license without the imposition of discipline for holding out or practicing on an expired license. A delinquency fee will be due upon renewal of the license during the 60-day grace period. After the 60-day grace period, the license will be deemed expired as of the original expiration date. The period of expiration is calculated from the original expiration date to the date the application is submitted.

30-02 - AIT BEST PRACTICES - ACCRUAL OF AIT PROGRAM HOURS (ADOPTED MAY 14, 2025)

Purpose: To establish a best practice regarding the monthly accrual of AIT program hours to ensure appropriate knowledge and skills retention and comprehension.

It is the policy of the Board of Examiners of Nursing Home Administrators to limit the amount of accrued monthly AIT hours to between 40 - 50 hours per week. This is to ensure that the AIT is retaining the knowledge and skills necessary to effectively oversee a community and protect the residents from harm.

Monthly hours accrued that are over 50 hours a week must be accompanied by a written explanation of the work done during this time and how it is benefitting the AIT. This explanation must be submitted in addition to the required monthly reports.

1. Exceptions as noted above are expected to occur on an infrequent basis for the entire training period. The preceptor is expected to have the responsibility to ensure the AIT stays within the hours stated within the policy. If the Program receives consistent monthly reports that are above the normal amount of weekly accrued hours, the Program Director will refer the AIT monitoring report to the next Board meeting for review.

30-03 - DELEGATED AUTHORITY: CHANGE OF PRECEPTOR (ADOPTED JANUARY 24, 2024)

The Board delegates authority to the Program Director or designee to review and approve change of preceptor requests when the preceptor change is justified, and the proposed preceptor meets all requirements. Should the Program Director or designee have concerns regarding the request, it will be referred to the Board's next meeting for review.

30-04 - RECONSIDERATION OF DENIED APPLICATIONS (ADOPTED JANUARY 27, 2021)

If an applicant requests a reconsideration for an application that has been denied, Board staff will present the reconsideration to Board members at the next regularly scheduled Board meeting if the request includes information not previously available to the Board at the time the decision to deny was made. If the request for reconsideration does not include new information, the applicant will be notified of their right to request a hearing pursuant to the Administrative Procedures Act, § 24-4-104(9), C.R.S.